

Court No. - 50

Case :- WRIT - C No. - 30480 of 2023

Petitioner :- Executive Engineer Electricity And Another

Respondent :- Veer Pal And Another

Counsel for Petitioner :- Alok Mishra

Counsel for Respondent :- C.S.C.

Hon'ble Ashutosh Srivastava,J.

1. Heard Shri Alok Mishra, learned counsel for the petitioners and Shri P. K. Chauhan, learned Standing Counsel representing the respondent No. 2.

2. The challenge in this writ petition is to the order dated 18.5.2023 passed by the Permanent Lok Adalat in P.L.A. Case No. 156 of 2021 whereby the complaint filed by the respondent No. 1 has been allowed and a demand for a sum of Rs.28,158.33 raised by the petitioners against the respondent No. 1 has been set aside with a direction to the petitioners to energize the electricity connection of the respondent No. 1.

3. Shri Alok Mishra, learned counsel for the petitioners submits that the complaint of the respondent No. 1 before the Permanent Lok Adalat was not maintainable inasmuch as the dispute between the petitioners and the respondent No. 1 was with regard to correctness of the bills. He submits that the Electricity Supply Code, 2005 provides a specific clause being Clause 6.5 where the Executive Engineer is empowered to entertain any complaint with regard to the dispute as regards the bills.

4. In the opinion of the Court, the jurisdiction of the Permanent Lok Adalat to entertain even a dispute with regard to bill is not ousted.

5. Shri Alok Mishra, learned counsel for the petitioners submits that so far as re-connection as ordered by the Permanent Lok Adalat would be adhered to and the other part regarding the setting aside of the bill quantified at Rs.28,158.33 and recovery of the same from the respondent No. 1, some interim protection be granted to the petitioners.

6. This Court finds that the respondent No. 1 is not before it. There is already an order by the Permanent Lok Adalat in favour of respondent No. 1. In such circumstances, the Court deems it

appropriate to issue notices to the respondent No. 1. Necessary steps be taken within a week. Respondent No. 1, if so advised, may file counter affidavit within a period of three weeks.

7. List this case on 6.10.2023.

8. The application for interim relief shall be considered on the next date fixed.

Order Date :- 15.9.2023

Ravi Prakash

(Ashutosh Srivastava, J.)